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LINE 1

22-CIV-03482

BARULICH DUGONI AND SUTTMANN LAW GROUP, INC. VS. JESSIE HUANG

BARULICH DUGONI & SUTTMAN LAW GROUP, INC.
JESSIE HUANG

JULLIAN SEKONA

MOTION TO ENTER JUDGMENT

TENTATIVE RULING:

Petitioner Barulich Dugoni & Suttman Law Group, Inc.’s Motion to Enter Judgment is DENIED without prejudice.

No proof of service of the motion has been filed, and there is no indication Respondent Jessie Huang has been provided notice of the hearing as required. (See Code Civ. Proc., § 1005, subd. (a).) A “court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question.” (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205.) Accordingly, the motion is denied.

Furthermore, the motion is essentially identical to the prior motion seeking to confirm an arbitration award denied on April 1, 2026. In denying that motion, the Court found that Huang had not been served with the petition as required by law. (Apr. 1, 2026 Order, ¶¶ 2–3.)

If the manner of service is provided for in the arbitration agreement, then a copy of the petition and notice of the hearing on the petition shall be served according to the agreement. (Code Civ. Proc., § 1290.4, subd. (a); see Bus. & Prof. Code, § 6203, subd. (b) [service of petition to confirm attorney–client fee arbitration award “shall be in the same manner as provided in Chapter 4 (commencing with Section 1285) of Title 9 of Part 3 of the Code of Civil Procedure”].) Here, there is no indication that the underlying arbitration agreement provided for manner of service. In such cases, the papers must be served (1) in the manner of a summons if service is to be made within California or (2) by registered or certified mail or personal service if service is to be made outside California. (*Id.*, at subd. (b).) Importantly, proof of service by registered or certified mail outside of California “shall be made by affidavit showing such mailing together with the return receipt of the United States Post Office bearing the signature of the person on whom service was made.” (*Id.*, at subd. (b)(2).) There is evidence of one attempt to serve the Petition by “certified mail delivery” three years ago, but the proof of service does not show the return receipt of the United States Post Office bearing Huang’s signature. (See Oct. 11, 2022 Proof of Service.)

Petitioner Barulich Dugoni & Suttman Law Group, Inc. has still not cured this jurisdictional defect, which is an additional and independent grounds for denial.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for Petitioner Barulich Dugoni & Suttman Law Group, Inc. shall prepare, for the court’s signature, a

written order consistent with this ruling, pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court.

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LINE 2

23-CIV-01887 CHARLES KING VS. ERIC STUART, ET AL.

CHARLES KING
ERIC STUART

PRO SE

PLAINTIFF'S MOTION TO CONTEST TENTATIVE RULING AND PROPOSED ORDER TO VACATE SANCTIONS

TENTATIVE RULING:

On June 2, 2026, the court heard the first of two motions to contest. The court noted that for the June 2, 2026 and this motion which was filed on March 30, 2026, there were no proofs of service. No proof of service has been filed since then.

California Rules of Court 3.1300 requires that “proof of service of the moving papers must be filed no later than five court days before the time appointed for the hearing.” Without the proof of service being filed, there is no evidence that defendants have been properly served with the motion and the court lacks jurisdiction to hear the motion. “[P]roof of service fulfills the function of establishing that ‘procedures implementing the constitutional requirements of due process were followed giving assurance that service really has been made.’ (*West v. West* (1979) 92 Cal.App.3d 120, 124, 154 Cal.Rptr. 667.) Accordingly, when adequate proof of service is available, it is of no legal import that a party actually may not have received notice. (*Ibid.*) That being the case, the courts are very strict in applying the statutory standards for proof of service; failure to strictly comply with those standards deprives the court of jurisdiction to act. (*Ibid.*)” (*Oats v. Oats* (1983) 148 Cal.App.3d 416, 420.)

Thus, defendants do not have proper notice of the hearing and the court cannot consider the motions. (See *Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205 [court lacks jurisdiction to rule on a motion that has not been properly noticed].)

If the tentative ruling is not contested, it will become the order of the court without the need for a formal order.
